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COMPROMISE SETTLEMENT AGREEMENT AND MUTUAL RELEASES

This Compromise Settlement Agreement and Mutual Releases (the "Agreement") is made by and among (1) Billie Joe Jarmon, Cynthia L. Jarmon, Destiny Jarmon, together with her successors, assigns, representatives, agents, and attorneys (collectively, "Jarmons"); and (2) Dina Evelyn Willis, Doyle Henry Willis, Jr., and Harrison Willis and Callen Willis, Co-Executors of the Estate of Dan Alvin Willis (collectively, the "Willis Defendants"). The Jarmons and the Willis Defendants will be collectively referred to hereafter as the "Parties."

RECITALS

WHEREAS, this dispute involves of an approximately 108-acre tract of land located in Freestone County, Texas more particularly described as follows:

110 acres in the J.Y. Aguilera Grant:

> BEGINNING at a point in the Oakwood and Turlington Road, said point being the Northeast cor. of 191.67 acres of land conveyed by the Estate of P.D. Ball to Dan Tippen and wife, a 36" P.O. Mkd X brs S. 36 East 16 vrs; THENCE South 54 ½ deg. West with the N.W. line of said Dan Tippen 191.67 acre tract, 1180 vrs to the West or N.W. corner of said 191.67 acre tract, at a point in the occupied S.W. boundary line of the J.Y. Aguilera Grant, a stake for corner from which a 16" P.O. mkd X brs S. 34 deg. E. 10 vrs; THENCE North 35 ½ deg West with the S.W. line of said Aguilera Grant and along an old wire fence 500 vrs. To a stake in the same for corner from which a 12" S.J. mkd X brs N 1 ½ deg. E. 24 vrs; THENCE N. 54 ½ deg. East 1295 vrs to a stake for cor. In the center of the Oakwood and Turlington Raod from which a 10" B.J. mkd X brs N. 78 deg West 8 vrs and a 14" S.J. mkd X brs S 28 deg W 13.3 vrs; THENCE S 22 deg 30' East with the center of a general course of said road 513 vrs. to the place of beginning, save and except all minerals heretofore conveyed or reserved.

Less and except 2 acres, being:

> the surface estate to all that certain lot, tract or parcel of land, situated in Freestone County, Texas, and being 2 acres out of the Willis McDonald 110 acres on J.Y. Aguilera Grant, Abstract No. 2, Freestone County, Texas ad described in a deed from Trustees of P.D.C. Ball Estate to Willis McDonald of record in Vol. 198, page 201, Deed Records of Freestone County, Texas;
>
> BEGINNING at a stake in the center of the Turlington and Oakwood Road, S 22 deg. 30 min. E 166 vrs to a stake in said road at the intersection of a road leading to Holly Springs lodge;

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THENCE S 70 deg. 30 min. W 168 vrs along the N line of said road to the iron stake for corner;
THENCE N 22 deg. 30 min. W 166 vrs to iron stake for corner;
THENCE N 70 deg. 30 min. E 68 vrs to a stake in the center of the Turlington & Oak Road to place of Beginning, containing 2 acres

(the "108-Acre Property")

WHEREAS, a dispute arose between the Jarmons and the Willis Defendants regarding ownership over the 108-Acre Property;

WHEREAS, the Willis Defendants' claim of holding an undivided 13.5/106 interest in and to the surface of the 108-Acre Property;

WHEREAS, the Jarmons claim fee simple title to the surface of approximately 86 acres within the 108-Acre Property as fully described in Exhibit A (together, the "86-acre Parcel");

WHEREAS, to avoid litigation over the 86-acre Parcel and 108-Acre Property and resolve all claims and disputes between the Jarmons and the Willis Defendants regarding the 86-acre Parcel, the Parties agree to the terms and conditions set forth below.

AGREEMENT

NOW, THEREFORE, in consideration of the mutual promises and agreements contained in this Agreement, the Parties agree as follows:

1. **Agreed Judgment for Partition.** The Parties agree to entry of the agreed judgment for partition substantially in the form attached as Exhibit A, titled "Compromise Settlement and Agreement for Partition, awarding the 86-Acre Parcel to the Jarmons, awarding an approximately 13.5-Acre Tract to the Willis Defendants (the "13.5-Acre Tract"), and awarding the remainder of the 108-Acre Property (approximately 8.5 acres) to Clydel Vernon. The agreed judgment shall provide that costs and fees shall be borne by the party incurring same.

2. **Deeds to the Jarmons.** The Willis Defendants agree to execute and deliver to the Jarmons the deeds conveying their right, title, and interest (including but not limited to any undivided interest) to the 86-acre Parcel Exhibit B and Exhibit C, conveying all of their interest, right, and title to the 86-acre Parcel and granting an access easement, to the Jarmons.

3. **Deeds to the Willis Defendant.** The Jarmons agree to execute and deliver to the Willis Defendants a deed without warranty conveying their right, title, and interest (including but not limited to any undivided interest) to the 13.5-Acre Tract together with an access easement.

4. **Payment to the Willis Defendants.** The Jarmons (through Stewart Title Guaranty Company) shall issue payments—not to exceed $15,000—to pay for costs of survey, costs of document preparation, and costs of abstractor to evaluate encumbrances on the 13.5-Acre Tract (the "Settlement Proceeds"). Settlement Proceeds that remain shall be paid to the Willis Defendants within 30 days of the Effective Date of this Agreement and receipt of a completed,

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current Form W-9 for each of the Willis Defendants and is contingent upon delivery of the following documents to the Jarmons' attorney (1) the Parties' proper execution of this Agreement and (2) the fully-executed COMPROMISE SETTLEMENT AND AGREEMENT FOR PARTITION attached as Exhibit A, (3) the deeds to the Jarmons attached as Exhibit B and Exhibit C, and (4) receipt by the Jarmons' counsel of a completed and current Form W-9 for the payee for the excess Settlement Proceeds, if any.

5. **30-Day Inspection Period.** The Willis Defendants shall have until April 10, 2026 to inspect the 13.5-Acre Tract for material defects in the physical condition of the 13.5-Acre Tract such as negative environmental conditions. The Jarmons shall cooperate in providing the Willis Defendants access to the 13.5-Acre Tract.

6. **Release of the Jarmons.** The Willis Defendants, on behalf of themselves and anyone claiming by, though, or under any of them, each fully and completely discharge and release the Jarmons from any and all claims, causes of action, demands, rights, remedies, costs, losses, reimbursements, damages, penalties, attorneys' fees, and expenses of each and every nature whatsoever, from the beginning of time to the effective date of this Agreement, whether known or unknown, whether based in tort, contract, or statute, including, but not limited to, any claims between them alleged or which could have been in alleged in the surface estate of the 86-Acre Parcel; provided, however, that the releases set forth in this section do not apply to any claims which arise under this Agreement.

7. **Release of the Willis Defendants.** The Jarmons, on behalf of themselves and anyone claiming by, though, or under any of them, each fully and completely discharge and release the Willis Defendants from any and all claims, causes of action, demands, rights, remedies, costs, losses, reimbursements, damages, penalties, attorneys' fees, and expenses of each and every nature whatsoever, from the beginning of time to the effective date of this Agreement, whether known or unknown, whether based in tort, contract, or statute, including, but not limited to, any claims between them alleged or which could have been in alleged in the surface estate of the 13-Acre Tract; provided, however, that the releases set forth in this section do not apply to any claims which arise under this Agreement.

8. **Disputes Arising Under Agreement.** The prevailing Party or Parties in any suit or other action to enforce this Agreement or to resolve any disputes arising under this Agreement will be entitled to recover all of their/its attorneys' fees and expenses incurred in that suit or other action. Time being of the essence, statutory or common law notice requirements, if any, as a condition precedent to the award of reasonable and necessary attorneys' fees to a prevailing Party or Parties is hereby waived.

9. **Parties Bound.** This Agreement will be, and is, binding upon and will inure to the benefit of each Party's heirs, successors and/or assigns.

10. **Representations and Warranties.** The Parties each warrant and represent that they have read this Agreement, they have conferred with their respective attorneys concerning this Agreement and the terms and conditions hereof, and that they fully understand the terms, conditions, requirements, and effects of this Agreement. The Parties each further warrant and

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represent that they are executing this Agreement freely and voluntarily, without threat, duress, coercion, or promise of consideration other than that stated herein and that they are competent to execute this Agreement and have the authority to enter into the terms and conditions set forth herein.

11. **Authority.** Each Party executing this Agreement warrants and represents that the individual executing this Agreement on its behalf has the authority and power to execute this Agreement for the person or entity on behalf of which he or she executes this Agreement and that the signature of the individual executing this Agreement on behalf of a Party will bind that Party to the terms of this Agreement.

12. **No Assignment of Claims.** Each Party executing this Agreement warrants and represents that he, she and/or it has not assigned or otherwise transferred right, title, or interest in any of the claims that Party is releasing in this Agreement.

13. **Survival of Representations and Warranties**. The representations and warranties contained herein will survive the execution and performance of this Agreement.

14. **Entire Agreement.** This Agreement constitutes the entire agreement and understanding among the Parties with respect to the subject matter of this Agreement. This Agreement supersedes all prior oral and written communications, agreements, arrangements, and understandings (written or otherwise) with respect to the subject matter of this Agreement and no oral or written communication, representation, or warranty, express or implied, has been made by or relied upon by any Party hereto, except as expressly contained herein. This Agreement may not be modified, amended or altered in any way, or rescinded except by a writing executed and signed by all Parties. Any waiver of any term or condition of this Agreement must be in writing and shall only be effective for the specific period and purpose expressly stated therein, and any such waiver shall not constitute or be construed as the waiver of any other provisions hereof or for another purpose or time.

15. **Responsibility for Costs.** Except as otherwise provided herein, each of the Parties hereto acknowledges that it is responsible to pay its own attorneys' fees, and other costs in connection with the Lawsuit and this Agreement.

16. **Further Assurances.** The Parties agree to take or cause to be taken all other actions reasonably necessary to carry out the provisions of this Agreement.

17. **Non-waiver.** No delay or omission by a Party to exercise any right in connection herewith shall impair such right or be construed to be a waiver thereof, and no waiver of any right or the breach of any provision hereof shall be construed to be a waiver of another right or provision or any subsequent breach of such provision.

18. **Counterparts and Facsimile Execution; Electronic Mail Transmission.** This Agreement may be executed in any number of counterparts, each of which is an original and all of which constitute one and the same document. All counterparts collectively constitute one instrument. The Parties intend that any facsimile or electronic copy of a signature to this

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Agreement will have the effect of an original and it is not necessary to confirm facsimile execution or electronic mail delivery by delivery of the original that was transmitted by facsimile or electronic mail.

19. **Governing Law.** The Parties agree that this Agreement will be governed by, and construed under and in accordance with, the laws of the State of Texas, without regard to its conflict of law principles.

20. **Severability.** Each provision of this Agreement shall be interpreted so as to be effective and valid under applicable law to the fullest extent possible, but in the event any provision of this Agreement shall itself or in connection with any other provision of this Agreement be held to be invalid, illegal, or unenforceable, the remaining terms and provisions of this Agreement shall not be affected and this Agreement shall be construed and interpreted as if such invalid or unenforceable provision were never a part in order to effectuate the purpose of this Agreement and the intention of the Parties.

21. **Construction.** The Parties acknowledge that the Parties and their respective counsel have jointly prepared this Agreement, that the Parties have reviewed this Agreement, and that the normal rule of construction to the effect that any ambiguities are to be resolved against the drafting party will not be employed in the interpretation of this Agreement.

22. **Headings.** The headings appearing in this Agreement are for the purpose of easy reference only and cannot in any way modify, amend, or affect the provisions of this Agreement.

[*Remainder of Page Intentionally Left Blank*]

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_____
Billie Joe Jarmon, Jr.

Date: _____

_____
Cynthia Lynet Jarmon

Date: _____

_____
Destiny Jarmon

Date: _____

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_____
Doyle Willis

Date: _____

Signed by:
Harrison Willis
9F81879283DB4D6...
_____
Harrison Willis, Co-Executor of the
Estate of Dan Alvin Willis

Date: _____

_____
Callen Willis, Co-Executor of the
Estate of Dan Alvin Willis

Date: _____

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_____
Dina Willis

Date: _____